

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
1	20CV373187	Austin Erlich et al vs Wahid Shah	Off calendar.
2	23CV420583	CAN CAPITAL, INC. vs DONALD JEFFORD et al	The Court could not locate a proof of service of the order of examination. If service was effectuated, Plaintiff is ordered to file the proof of service and bring a copy to the hearing. Otherwise, this hearing will be taken off calendar.
3	24CV450028	Bernard Appel vs [Doe] Gingery et al	Defendants' demurrer to the third cause of action is SUSTAINED WITH LEAVE TO AMEND. See line 3 for complete ruling. Court will prepare formal order.
4	22CV404372	LUM GURUNG et al vs GARLIC FARM TRUCK CENTER, LLC et al	Plaintiff Chhetri's motions (1) for an order compelling Defendant Ashraf Ali's further responses to requests for production, special interrogatories, and form interrogatories and for sanctions (set for hearing June 12, 2025), (2) for an order compelling Defendant Samir Ali's further responses to Requests for Production, Interrogatories, and for monetary sanctions (set for hearing August 12, 2025), and (3) and to compel discovery responses, deem requests for admission admitted, and for monetary sanctions against Defendants Samir Ali and Ashraf Ali (November 4, 2025) are RESET to be heard on July 3, 2025 at 9 a.m. in Department 6. Plaintiff Chhetri is ordered to give notice of the new hearing date for all three of these motions.
5	23CV420315	Second Osborn LLC vs Brent Lee et al	Defendants' motion to set aside default and default judgment is DENIED. See line 5 for complete tentative ruling. Court will prepare formal order.
6	23CV420315	Second Osborn LLC vs Brent Lee et al	Defendants' motion to quash third party subpoenas is DENIED. See line 6 for complete tentative ruling. Court will prepare formal order.
7	23CV410362	The Kanavel Group, LLC, a Wyoming limited liability company vs 1-20 DOES et al	Hall Griffin LLP's (Jeremy T. K Katz and Eric V. A Anderton) motion to withdraw as counsel of record for The Kanavel Group LLC ("Kanavel") is GRANTED and will become effective upon filing of the proof of service of the formal order on Kanavel, which formal order the Court will prepare using the order on file. A company, regardless of corporate form, cannot represent itself in civil litigation in California. (<i>Clean Air Transp. Sys. v. San Mateo County Transit Dist.</i> (1988) 198 Cal. App. 3d 576, 578 ("[A] corporation is a distinct legal entity, separate from its shareholders and officers. The rights and liabilities of corporations are distinct from the persons composing it. Thus, a corporation cannot appear in court except through an agent."); <i>Ferruzzo v. Superior Court</i> (1980) 104 Cal. App. 3d 501, 503 ("The rule is clear in this state that, with the sole exception of small claims court, a corporation cannot act in propria persona in a California state court."); <i>Merco Constr. Engineers, Inc. v. Municipal Court</i> (1978) 21 Cal. 3d 724, 727 ("the Legislature cannot constitutionally vest in a person not licensed to practice law the right to appear in a court of record in behalf of another person, including a corporate entity.") Accordingly, on October 9, 2025 at 10:00 a.m. in Department 6, Kanaval is ordered to appear and show cause why this case should not be dismissed without prejudice for failure to obtain counsel.
8	23CV425134	VIRTUAL BENEFIT SOLUTIONS TECH (PTY) LTD vs AMILKE SOUTH AFRICA (PTY) LTD et al	Case dismissed.

9	2009-1-CV-151518	Colorado Capital Investments, Inc. vs E. Barrera	Judgment debtor's motion to set aside the order to sell dwelling is DENIED. Judge debtor had notice of the hearing the lead to entry of the order. There is no basis to set aside the order. These rulings will be reflected in the minutes.
10	24CV432080	SERENITY MSO LLC et al vs PALO ALTO MIND BODY et al	The Court orders the parties to appear at the hearing and provide further argument regarding the application of <i>Gloster v. Sonic Automotive, Inc.</i> (2014) 226 Cal. App. 4th 438, 449; <i>Cronus Investments, Inc. v. Concierge Services</i> (2005) 35 Cal.4th 376; <i>Rodriguez v. American Technologies, Inc.</i> (2006) 136 Cal.App.4th 1110; and <i>Victrola 89, LLC v. Jaman Properties 8 LLC</i> (2020) 46 Cal.App.5th 337. See line 10 below for more fulsome explanation.

Line 3

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

BERNARD APPEL,

Plaintiff,

v.

CITY OF SAN JOSE, [DOE] GINGERY, and
DOES 1 – 20 inclusive,

Defendants.

Case No. 24CV450028

**ORDER SUSTAINING DEFENDANTS'
DEMURRER WITH LEAVE TO AMEND**

Defendants' demurrer to Plaintiff's first amended complaint ("FAC") came on for hearing before the Court on June 12, 2025. Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling.

I. Alleged Facts

While walking in the downtown San Jose area on August 19, 2023, Plaintiff Bernard Appel and his girlfriend got into an argument that prompted bystanders to call the police reporting a domestic disturbance, and San Jose police officers arrested Mr. Appel. (FAC ¶ 5.)

Upon arrival, Officer Gingery immediately put Plaintiff in an arm bar without asking him any questions and slammed his head into a metal fence. Plaintiff did not resist the arm bar. (FAC ¶ 6.) Plaintiff attempted to inform the officer of his recent neck injury but in response the officer took him to the ground and placed his forearm on the back of Plaintiff's neck and upper back. There was no objective reason for the officer to perform a takedown and make forceful contact with his neck